

4. 9:00 AM CASE NUMBER: C24-00086
CASE NAME: EMIL MOUTON VS. ALLAN MENDIETA
***HEARING ON MOTION IN RE: STRIKE 1ST AMENDED COMPLAINT**
FILED BY: MENDIETA, ALLAN S.
TENTATIVE RULING:

See Line 3 above.

5. 9:00 AM CASE NUMBER: C25-00012
CASE NAME: SURGRIFF PROPERTIES LLC VS. CLARITA GRIFFIN
***HEARING ON MOTION IN RE: COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES,**
SPECIAL INTERROGATORIES, REQUESTS FOR PRODUCTION, AND REQUESTS FOR ADMISSION, SET
ONE
FILED BY:
TENTATIVE RULING:

On July 21, 2025, plaintiff Surgriff Properties LLC ("Plaintiff") filed a motion to compel further responses to certain discovery requests propounded by Plaintiff to defendant Clarita Griffin ("Defendant") (collectively, the "Motion to Compel Further Responses"). The Motion to Compel Further Responses was set for hearing on November 3, 2025.

Background

The Motion to Compel Further Responses relates to four separate discovery requests. Plaintiff served Defendant with (1) a Form Interrogatories, Set One, (2) Special Interrogatories, Set One, (3) Requests for Production, Set One, and (4) Requests for Admission, Set One. See Declaration of Jason Horst filed July 21, 2025 ("Horst Decl."), ¶13 and **Exhibits 1-4** thereto. Collectively, these requests are referred to herein as the "Discovery Requests."

No responses were received before the deadline. Horst Decl., ¶15. Despite meet and confer efforts, no responses were received before Plaintiff filed an earlier motion to compel on May 15, 2025.

Responses were finally served on June 3, 2025. Horst Decl., ¶15.

The earlier motion to compel was denied as moot given that responses had been served in the interim. See Order entered September 2, 2025.

However, this motion remained pending based on the contention that Defendant's responses were inadequate.

At the hearing on the Motion to Compel Further Responses on November 4, 2025,* the Court ordered the parties to meet and confer and file a Joint Statement no longer than 10 pages by December 1, 2025 (the "Joint Statement") and continued the hearing to December 15, 2026.

At the Case Management Conference (CMC) on November 19, 2025, the Motion to Compel Further Responses was continued from December 15, 2025 to March 9, 2026. The Court was informed that the parties had made progress towards settlement and the parties agreed to continue the discovery motion. See Minute Order dated November 19, 2026.

A Reply was filed on March 2, 2026. Among other things, plaintiff observes that no settlement has yet

been reached.

*This date was specially set by the Court's published tentative ruling.

Analysis

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

On the other hand, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a). Moreover, the moving party and proponent of the discovery on a motion to compel further responses to a request for production of documents must set forth specific facts showing good cause justifying the discovery sought by the demand. Code Civ. Proc. § 2031.310(b)(1).

While the Reply brief describes Plaintiff's initial efforts to meet and confer (see Reply, pp. 6-7), there has been no showing that the parties complied with the Court's earlier order to further meet and confer and prepare the Joint Statement as ordered on November 4, 2025.

Accordingly, the Court continues the matter and orders the parties to complete such further meet and confer efforts and to file a Joint Statement identifying each of the discovery items that remain in dispute and the unresolved issues as to the items.

In connection with such further meet and confer, the Court admonishes Defendant as follows:

- 1. Waiver of Objections.** The Court finds that any objections to such Discovery Requests have been waived. See Code Civ. Proc. §§ 2030.290, 2031.300 and 2033.280. Any supplemental responses should be without objections.
- 2. Lack of Code Compliant Responses.** The responses to the subject document production requests are not code compliant as written. Defendant is admonished to review the provisions of Code of Civil Procedure sections 2031.210 through 2031.230. See Code Civ. Proc. §§ 2031.210-2031.230.

Sanctions

The parties are further ordered to meet and confer regarding payment of monetary sanctions for the costs of the present motion.

While the Court has not made a final determination regarding sanctions and will consider any mitigating circumstance in rendering a final decision, including whether compliant supplemental responses are made hereafter, the Court makes the following observations and findings:

- 1. Initial Failure to Timely Respond.** Defendant's failure to respond to the Discovery Requests even after the deadline to do so had passed and demands for responses were made constituted failing to respond to an authorized method of discovery, pursuant to Code of Civil Procedure

section 2023.010(d). See Horst Decl., ¶6 *et seq.*

2. Failure to Meet and Confer in Good Faith. Defendant's failure to respond to meet and confer efforts regarding the Discovery Requests after the late responses were finally served constitutes failing to confer with an opposing party or attorney in a reasonable and good faith attempt to resolve informally any dispute concerning discovery, pursuant to Code of Civil Procedure section 2023.010(i). See Horst Decl., ¶¶10-13.

3. Misuse of Discovery Process. The Court finds that the foregoing conduct by Defendant constituted conduct that was a misuse of the discovery process within the meaning of Code of Civil Procedure section 2023.030 and that such conduct warrants the imposition of monetary sanctions.

Disposition

The Court further finds and orders as follows:

1. The Motion to Compel Further Responses is CONTINUED to **May 4, 2026, 9:00 am in Department 34.**
2. The Joint Statement shall be filed no later than **April 20, 2026.**
3. If the case otherwise resolves, the Joint Statement may simply indicate that the motion is withdrawn in light of a final settlement.

6. 9:00 AM CASE NUMBER: C25-00713
CASE NAME: PRAVEEN GUPTA VS. THE VINTNER CONDOMINIUM HOMEOWNERS ASSOCIATION
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: AXIS CONSTRUCTION INC
TENTATIVE RULING:

See Line 8.

7. 9:00 AM CASE NUMBER: C25-00713
CASE NAME: PRAVEEN GUPTA VS. THE VINTNER CONDOMINIUM HOMEOWNERS ASSOCIATION
***HEARING ON MOTION IN RE: STRIKE PORTIONS OF 1ST AMENDED COMPLAINT**
FILED BY: AXIS CONSTRUCTION INC
TENTATIVE RULING:

See Line 8.

8. 9:00 AM CASE NUMBER: C25-00713
CASE NAME: PRAVEEN GUPTA VS. THE VINTNER CONDOMINIUM HOMEOWNERS ASSOCIATION
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT